



ShopNJoy Master Services Agreement (MSA)

1. Definitions and Interpretation

1.1. Definitions. In this Agreement, unless the context otherwise requires, the following capitalized terms shall have the meanings set forth below:

"Applicable Law" means all laws, rules, regulations, notices, circulars, and guidelines issued by any governmental or regulatory authority in Singapore, including but not limited to the Personal Data Protection Act 2012 (PDPA), as amended from time to time.

"Business Day" means a day (other than a Saturday, Sunday, or public holiday) on which commercial banks are open for business in Singapore.

"Completion" means the point in time when a transaction is deemed finalized within the Platform's ledger, occurring only after the Fulfilment Merchant has successfully settled the relevant monthly Platform Invoice.

"Confidential Information" means any information, however conveyed or presented, that relates to the business, affairs, operations, customers, processes, budgets, pricing, or strategies of a Party, including the specific commercial terms set out in the Annexes.

"Fulfilment Merchant" means the merchant entity at whose physical or digital point-of-sale a Shopper purchase occurs and who is responsible for the payment of ShopNJoy Fees.

"Gems" means the points used in the ShopNJoy system to unlock redemption rewards, or monetary rewards, dependent on the type of gems applicable.

"Insolvency Event" means, in relation to a Party, any step or action taken in connection with that Party entering administration, provisional liquidation, or any composition or arrangement with its creditors, or being wound up (whether voluntarily or by order of the court).

"Merchant" means any merchant onboarded onto the ShopNJoy platform. For avoidance of doubt, the role of the merchant can be both Fulfilment Merchant or Referral Merchant, dependent on the context in which they are referred to under this Agreement.

"Platform" means the ShopNJoy digital ecosystem, including the mobile application, web interface, and proprietary financial ledger.

"ShopNJoy Fee" means the commission or service fee payable by a Fulfilment Merchant to ShopNJoy, as specified in **Annex A**.

"Referral Merchant" means the merchant entity responsible for recruiting and "tagging" Shoppers to the Platform; and who is eligible for rewards based on such Shoppers' spending activity.

"Settlement" means the net payment made by ShopNJoy to the Merchant of all cleared funds, less any ShopNJoy Fees, Refunds, Chargebacks, or other deductions permitted under this Agreement.

"Shopper" means an individual user registered on the Platform who has been tagged to a Referral Merchant, and uses the goods and services of a Fulfilment Merchant.

1.2. Interpretation

(a) **Statutes:** References to any statute or statutory provision include a reference to that statute or provision as amended, consolidated, or re-enacted.

(b) **Headings:** Clause and Annex headings are for convenience only and shall not affect the interpretation of this Agreement.

(c) **Include:** The words "include" or "including" shall be deemed to be followed by the words "without limitation."

(d) **Annexes:** The Annexes form an integral part of this Agreement and shall have the same force and effect as if expressly set out in the body of this Agreement. In the event of a conflict between the main body of the MSA and the Annexes, the Annexes shall prevail regarding commercial terms, while the main body shall prevail regarding legal liabilities and governing law.

(e) **Third-Party Rights:** Unless expressly provided otherwise, a person who is not a party to this Agreement shall have no right under the *Contracts (Rights of Third Parties) Act 2001* to enforce any of its terms.

2. Merchant Onboarding and Due Diligence

2.1. Condition Precedent

The Merchant's access to the Platform and the provision of Services by ShopNJoy are strictly contingent upon the Merchant successfully passing all Know-Your-Business ("KYB") and Anti-Money Laundering and Countering the Financing of Terrorism ("AML/CFT") checks to the sole satisfaction of ShopNJoy.

2.2. Submission of Information

The Merchant shall provide all such information and documents as ShopNJoy may reasonably require for the purposes of performing due diligence, including but not limited to:

- (a) Valid Unique Entity Number (UEN) and Business Profile (ACRA BizFile);
- (b) Identification documents and proof of residential address for all ultimate beneficial owners, directors, and authorized signatories;
- (c) Ownership structure and organizational charts;
- (d) Valid licenses required for the Merchant's specific industry (e.g., F&B, Liquor, or Retail licenses); and
- (e) Any additional information requested by ShopNJoy to comply with its obligations under Singapore law.

2.3. Ongoing Due Diligence

The Merchant acknowledges that KYB is a continuous process. ShopNJoy reserves the right to:

- (a) Conduct periodic reviews of the Merchant's account and transaction activity;
- (b) Re-verify Merchant information every twelve (12) months or upon a significant change in business ownership; and
- (c) Perform physical site visits to the Merchant's business premises to verify the legitimacy of operations.

2.4. Duty to Update

The Merchant shall notify ShopNJoy in writing within seven (7) Business Days of any material change in the information provided during onboarding, including changes in shareholding, directorship, business nature, or GST registration status.

2.5. Absolute Discretion

ShopNJoy retains absolute discretion to approve, decline, or suspend any Merchant application or account without providing a reason. The Merchant agrees that ShopNJoy shall not be liable for any loss, including loss of profit or opportunity, arising from a delay in onboarding or a rejection of the Merchant's application.

2.6. Third-Party Screenings

The Merchant expressly authorizes ShopNJoy to share Merchant data with third-party screening agencies, credit bureaus, and regulatory bodies (including MAS) for the purposes of risk assessment, fraud prevention, and regulatory reporting.

2.7. Representation of Authority

The Merchant warrants that all information provided during the onboarding process is true, accurate, and complete. Any provision of false or misleading information shall be deemed a material breach of this Agreement, entitling ShopNJoy to immediate termination under Clause 9.

3. Scope of Services & Merchant Roles

3.1. Referral Merchant Obligations

3.1.1. Scope of Role. The Referral Merchant's primary objective is the promotion of the Platform and the recruitment of Shoppers. The Referral Merchant acknowledges that its eligibility for rewards is strictly contingent upon the spending activity of Shoppers successfully "tagged" to the Merchant's account within the Platform's digital ledger.

3.1.2. Shopper Onboarding & "Tagging" Protocol

(a) Ethical Recruitment: The Merchant shall use only lawful and ethical means to recruit Shoppers. Predatory marketing, "spamming," or providing misleading information regarding the nature of the ShopNJoy ecosystem is strictly prohibited.

(b) Technical Attribution: The Merchant must ensure Shoppers utilize the Merchant's unique referral link or QR code. ShopNJoy shall not be liable for any failure to "tag" a Shopper due to Merchant error or Shopper non-compliance with the registration flow.

3.1.3. Personal Data Protection (PDPA) Compliance

(a) Consent Requirements: In accordance with the Personal Data Protection Act 2012, the Referral Merchant warrants that it has obtained clear, informed, and unambiguous consent from individuals prior to inviting them to the Platform.

(b) Data Use Restriction: The Merchant is prohibited from harvesting, selling, or utilizing Shopper data obtained through the Platform for any purpose outside the scope of this Agreement.

(c) PDPA Indemnity: The Merchant shall fully indemnify ShopNJoy against all fines, penalties, and legal costs arising from any breach of the PDPA by the Merchant or its employees.

3.1.4. Brand Integrity & Professional Conduct

(a) Authorized Assets: The Merchant shall only utilize marketing materials and trademarks provided or approved in writing by ShopNJoy.

(b) Non-Disparagement: The Merchant shall refrain from any conduct that may bring the ShopNJoy brand, its partners, or the wider ecosystem into disrepute.

(c) Independent Contractor Status: The Merchant shall not represent itself as an agent, joint venturer, or employee of ShopNJoy.

3.1.5. Prevention of Ecosystem Fraud

(a) Verified Users: The Merchant shall only recruit natural persons. The use of "bot" accounts, duplicate registrations, or "ghost" shoppers to artificially trigger rewards is a material breach of this Agreement.

(b) Audit and Clawback: ShopNJoy reserves the right to audit the Merchant's referral list. Any Gems issued as a result of fraudulent activity or non-compliant recruitment shall be subject to immediate cancellation or clawback from the Merchant's balance.

3.2. Fulfilment Merchant Obligations

3.2.1. Scope of Role

The Fulfilment Merchant is responsible for the delivery of goods or services to Shoppers. The Merchant acknowledges that its participation is central to the "Completion" of the transaction cycle.

3.2.2. Transaction Reporting and Integrity

(a) Real-Time Recording: The Merchant shall ensure all Shopper transactions are accurately recorded via the ShopNJoy interface or integrated POS system at the time of purchase.

(b) Prohibition of Splitting: The Merchant shall not artificially split a single transaction into multiple smaller transactions to manipulate fee structures or reward tiers.

(c) Verification: The Merchant is responsible for verifying the identity of the Shopper and the validity of their digital wallet before fulfilling an order.

3.2.3. Platform Invoicing and Payment

(a) Monthly Invoice Settlement: The Merchant shall receive a monthly Platform Invoice detailing the ShopNJoy Fees and any other fees applicable.

(b) Timeline for Payment: The Merchant must settle the Platform Invoice within seven (7) Business Days of receipt. The Merchant acknowledges that until this invoice is paid, the transaction status remains "Processing" and no funds will be released for Settlement.

(c) Late Payment: Failure to settle invoices on time may result in a temporary suspension of the Merchant's ability to accept ShopNJoy gems or a deduction from the Merchant's Reserve Account. It may also result in suspension of the Merchant's ability to access ShopNJoy's ecosystem and promotional features.

3.2.4. Refunds and Reversals

(a) Refund Policy: Any refunds for goods or services purchased via the Platform must be processed through the ShopNJoy system to ensure the accurate reversal of gems and fees. For the avoidance of doubt, both the merchant and the shopper are required to submit relevant proof and confirmations of the refund through the ShopNJoy platform.

(b) Admin Fees: The Merchant acknowledges that refunds may be subject to an administrative fee as specified in Annex A.

(c) Time Limit: No refunds shall be processed after sixty (60) days from the date of the original transaction.

3.2.5. Operational Compliance

(a) Pricing Parity: The Merchant shall not surcharge Shoppers for using the ShopNJoy Platform. The price charged to a Shopper must be identical to the price charged to a cash-paying customer for the same good or service.

(b) Point-of-Sale Visibility: The Merchant shall prominently display ShopNJoy marketing collateral (e.g., decals, QR codes) at the point of sale to indicate acceptance of the Platform's services.

4. Financial Flow and Settlement

4.1. Monthly Invoicing Process

4.1.1. Generation of Invoices: On the first Business Day of each calendar month, ShopNJoy shall issue an electronic invoice (the "Platform Invoice") to the Fulfilment Merchant for the preceding month's activity.

4.1.2. Invoice Composition: The ShopNJoy Invoice shall include any applicable fees or administrative charges as set out in Annex A.

4.1.3. Payment Timeline: The Merchant shall settle the Platform Invoice in full within seven (7) Business Days of receipt.

4.2. Settlement to Merchants

4.2.1. Monthly Settlement Cycle: ShopNJoy shall process settlements to the Merchant's designated bank account once per calendar month.

4.2.2. Calculation of Net Settlement: Subject to an "Active" merchant health score, the amount disbursed to the Merchant shall be the total value of undisputed Shopper transactions, less:

(a) ShopNJoy Fees payable;

- (b) Refunds and Chargebacks processed during the period;
- (c) Any amounts required to be held in a Reserve Account (Clause 4.3); and
- (d) Any taxes, including GST, which ShopNJoy is required by law to withhold or collect.

4.3. Reserve Account and Set-Off

4.3.1. Reserve Requirement: ShopNJoy may, at its discretion, require a Merchant to maintain a "Reserve Account" (a withheld percentage of settlements) to cover potential refunds, disputed transactions, or indemnity claims. Any implementation of the reserve account will be subject to the terms in the ShopNJoy refund policy and Merchant claims track record.

4.3.2. Right of Set-Off: ShopNJoy shall be entitled at any time, without notice to the Merchant, to set off any liability of the Merchant to ShopNJoy against any liability of ShopNJoy to the Merchant, whether such liability is present or future, liquidated or unliquidated.

4.4. Disputed Transactions

If a Merchant disputes any amount in a Platform Invoice or Settlement report, it must notify ShopNJoy within fourteen (14) days of the document date. Failure to provide such notice shall be deemed an absolute waiver of the Merchant's right to dispute that specific transaction or fee.

4.5. Currency and Taxes

4.5.1. All financial transactions and settlements shall be conducted in Singapore Dollars (SGD).

4.5.2. The Merchant is solely responsible for reporting and paying all taxes arising from its sales on the Platform.

5. Representations and Warranties

5.1. Mutual Representations and Warranties

Each Party represents and warrants to the other that:

- (a) Corporate Status: It is a company duly incorporated, validly existing, and in good standing under the laws of the Republic of Singapore;
- (b) Authority: It has the full corporate power and authority to enter into and perform its obligations under this Agreement;

(c) Enforceability: This Agreement constitutes a legal, valid, and binding obligation, enforceable against it in accordance with its terms; and

(d) No Conflict: The execution and performance of this Agreement do not violate any provision of its constitution, any applicable law, or any order of any court or government agency.

5.2. Merchant's Specific Representations and Warranties

The Merchant represents and warrants to ShopNJoy that:

(a) Regulatory Compliance: It possesses and will maintain all necessary licenses, permits, and approvals required by Applicable Law to conduct its business and sell the goods or services offered on the Platform (including, where applicable, F&B licenses, liquor licenses, or tobacco retail permits);

(b) Accuracy of Information: All information provided during the onboarding process (pursuant to Clause 2) and in the Sign-up Form is true, complete, and accurate in all material respects;

(c) Business Legitimacy: It is not a "shell company" and is engaged in a bona fide, lawful business activity as described in the Sign-up Form;

(d) Anti-Money Laundering: It has not been, and is not currently, subject to any investigations or proceedings related to money laundering, terrorism financing, or other financial crimes; and

(e) No Encumbrances: It has full legal title to the goods or services sold to Shoppers, free from any third-party liens or encumbrances.

5.3. Referral-Specific Warranties

Where the Merchant acts as a Referral Merchant, it further warrants that:

(a) PDPA Compliance: It has implemented adequate technical and organizational measures to ensure that any personal data handled during the referral process is protected in accordance with the PDPA.

5.4. Fulfilment-Specific Warranties

Where the Merchant acts as a Fulfilment Merchant, it further warrants that:

(a) Product Safety: All goods sold to Shoppers through the Platform meet the safety and quality standards required by Singapore law (e.g., Enterprise Singapore or SFA standards);

(b) Tax Obligations: It is, and will remain, responsible for the collection and remittance of all applicable taxes, including GST, arising from transactions on the Platform.

5.5. Continuing Warranties

The representations and warranties set out in this Clause 5 are made on the Effective Date and are deemed to be repeated on each day during the Term of this Agreement by reference to the facts and circumstances then existing.

5.6. Consequences of Breach

Any breach of a representation or warranty shall be deemed a material breach of this Agreement. ShopNJoy reserves the right to immediately suspend the Merchant's account and seek indemnification under Clause 8 for any losses resulting from such a breach.

6. Intellectual Property & Marketing

6.1. Ownership of Platform IP

The Merchant acknowledges and agrees that ShopNJoy (or its licensors) owns all right, title, and interest in and to the Platform, including but not limited to:

- (a) All software, source code, object code, algorithms, and logic;
- (b) The design, layout, and "look and feel" of the ShopNJoy mobile application and web interfaces;
- (c) All data generated by the Platform, including Shopper transaction history, reward allocation ledgers, and "tagging" metadata; and
- (d) All trademarks, service marks, and logos associated with "ShopNJoy" and the specific gem designations.

6.2. Limited License to Merchant

Subject to the terms of this Agreement, ShopNJoy grants the Merchant a non-exclusive, revocable, non-transferable, and royalty-free license during the Term to:

- (a) Access and use the Platform interface solely for the purpose of recording transactions and managing its Merchant account; and
- (b) Display ShopNJoy-branded marketing collateral (e.g., decals, QR codes, and digital banners) at the Merchant's physical or digital points of sale to indicate participation in the ecosystem.

6.3. License to ShopNJoy

The Merchant grants ShopNJoy a non-exclusive, royalty-free, worldwide license to use the Merchant's name, trading name, trademarks, and logos ("Merchant Marks") for the following purposes:

- (a) Listing the Merchant as a partner on the ShopNJoy application and website;
- (b) Featuring the Merchant in promotional campaigns, newsletters, and social media posts; and
- (c) Announcing the partnership to the general public upon the execution of the Sign-up Form.

6.4. Branding Guidelines

Each Party shall comply with the other Party's branding guidelines when using the other's Marks. Any use of a Party's Marks must be professional and must not alter the colors, aspect ratios, or design of the Marks without prior written consent. Either Party may request the immediate removal or modification of any marketing material that it deems, in its sole discretion, to be a misuse of its brand.

6.5. Feedback and Improvements

If the Merchant provides ShopNJoy with any feedback, suggestions, or ideas regarding the Platform ("Feedback"), the Merchant hereby assigns all rights in such Feedback to ShopNJoy. ShopNJoy shall be free to use such Feedback for any purpose, including the development of new features or services, without any obligation to compensate the Merchant.

6.6. Prohibited Acts

The Merchant shall not, and shall not attempt to:

- (a) Reverse engineer, decompile, or disassemble any part of the Platform;
- (b) Register any domain names, social media handles, or trademarks that are confusingly similar to ShopNJoy's Marks; or
- (c) Remove, obscure, or alter any copyright or proprietary notices contained within the Platform.

6.7. Survival

The provisions of this Clause 6 regarding the ownership of Platform IP and the protection of Confidential Information shall survive the termination or expiration of this Agreement.

7. Data Protection (PDPA)

7.1. Data Protection Obligations

Both Parties shall, at all times, comply with their respective obligations under the Personal Data Protection Act 2012 ("PDPA") and any regulations, advisory guidelines, or notices

issued by the Personal Data Protection Commission ("PDPC") in relation to the collection, use, disclosure, and processing of Personal Data.

7.2. Capacity of the Parties

7.2.1. Independent Controllers: For the purposes of the Shopper recruitment and transaction process, each Party generally acts as an independent "organization" (as defined in the PDPA) in respect of the Personal Data it collects.

7.2.2. Data Intermediary: To the extent that ShopNJoy processes Personal Data on behalf of the Merchant (or vice versa) for a specific functional purpose, that Party shall be deemed a "data intermediary" and shall comply with the protection and retention obligations set out in the PDPA.

7.3. Merchant Obligations regarding Shoppers

7.3.1. Purpose Limitation: The Merchant shall only collect and use Shopper Personal Data for the purpose of facilitating transactions on the Platform. The Merchant is strictly prohibited from using such data for unsolicited marketing or selling such data to third parties.

7.3.2. Notification of Withdrawal: If a Shopper withdraws their consent for the Merchant to use their Personal Data, the Merchant shall notify ShopNJoy within twenty-four (24) hours so that the Platform's "tagging" ledger can be updated accordingly.

7.4. Data Security and Breach Notification

7.4.1. Security Measures: Each Party shall implement appropriate administrative, physical, and technical measures to protect Personal Data against unauthorized access, collection, use, disclosure, copying, modification, or disposal.

7.4.2. Breach Notification: In the event of a suspected or actual Data Breach (as defined in the PDPA) involving Shopper data or Platform credentials, the affected Party shall notify the other Party immediately and, in any event, within twenty-four (24) hours of discovery.

7.4.3. Cooperation: In the event of a Data Breach, the Merchant shall cooperate fully with ShopNJoy in any investigation, mitigation efforts, and mandatory notifications to the PDPC or affected individuals.

7.5. Access and Correction Requests

If a Shopper submits an access or correction request to the Merchant regarding data held on the ShopNJoy Platform, the Merchant shall promptly refer such request to ShopNJoy for processing.

7.6. Data Retention

The Merchant shall not retain Personal Data for longer than is necessary to fulfill the business or legal purposes for which it was collected. Upon termination of this Agreement, the Merchant shall, at ShopNJoy's direction, securely delete or return all Personal Data related to the Platform, unless retention is required by Applicable Law.

7.7. Indemnity

The Merchant shall fully indemnify and hold ShopNJoy harmless from and against all claims, fines (including PDPC financial penalties), losses, and expenses arising out of the Merchant's breach of its obligations under this Clause 7 or the PDPA.

7.8. Standard Contractual Clauses (Cross-Border)

The Merchant shall not transfer any Personal Data obtained through the Platform outside of Singapore without the prior written consent of ShopNJoy and unless it ensures that the transferred data is protected to a standard comparable to that under the PDPA.

8. Liability and Indemnification

8.1. Limitation of Liability

8.1.1. Exclusion of Indirect Damages: To the maximum extent permitted by Applicable Law, ShopNJoy shall not be liable to the Merchant or any third party for any indirect, incidental, special, consequential, or exemplary damages, including but not limited to loss of profits, loss of revenue, loss of data, loss of goodwill, or business interruption, even if ShopNJoy has been advised of the possibility of such damages.

8.1.2. Aggregate Liability Cap: ShopNJoy's total cumulative liability to the Merchant for all claims arising out of or in connection with this Agreement, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, shall not exceed the total ShopNJoy Fees actually paid by the Merchant to ShopNJoy in the six (6) month period immediately preceding the event giving rise to the claim.

8.2. No Warranty on Platform Availability

The Merchant acknowledges that the Platform is provided on an "as-is" and "as-available" basis. ShopNJoy does not warrant that the Platform will be uninterrupted, error-free, or completely secure. ShopNJoy shall not be liable for any losses arising from system downtime, scheduled maintenance, or technical failures of third-party telecommunications or payment gateways.

8.3. Merchant Indemnification

The Merchant shall defend, indemnify, and hold harmless ShopNJoy, its affiliates, directors, officers, and employees (the "Indemnified Parties") from and against any and all claims,

liabilities, losses, costs, and expenses (including reasonable legal fees on a full indemnity basis) arising out of or in connection with:

- (a) Breach of Agreement: Any breach of the Merchant's obligations, representations, or warranties under this Agreement;
- (b) Regulatory Non-Compliance: Any violation by the Merchant of Applicable Law, including the PDPA or Payment Services Act;
- (c) Product/Service Liability: Any claim by a Shopper or third party relating to the quality, safety, legality, or delivery of the goods or services provided by a Fulfilment Merchant;
- (d) Fraudulent Activity: Any fraud, willful misconduct, or gross negligence committed by the Merchant, its employees, or agents (including "ghost" shopper recruitment or any manipulation); and
- (e) Tax Liability: Any failure by the Merchant to properly report or remit taxes (including GST) arising from transactions on the Platform.

8.4. Exceptions to Limitations

Nothing in this Agreement shall exclude or limit either Party's liability for:

- (a) Death or personal injury caused by its negligence;
- (b) Fraud or fraudulent misrepresentation; or
- (c) Any other liability that cannot be excluded or limited under the laws of the Republic of Singapore.

8.5. Indemnification Procedure

ShopNJoy shall promptly notify the Merchant of any claim for which it seeks indemnification. The Merchant shall have the right to assume the defense of such claim at its own expense, provided that it uses counsel reasonably acceptable to ShopNJoy and does not settle any claim in a manner that admits liability or imposes obligations on ShopNJoy without ShopNJoy's prior written consent.

8.6. Force Majeure

Neither Party shall be liable for any failure or delay in performing its obligations under this Agreement (other than payment obligations) to the extent that such failure or delay is caused by a Force Majeure Event (including acts of God, pandemic, war, civil unrest, or nationwide internet outages). If a Force Majeure Event continues for more than thirty (30) days, either Party may terminate this Agreement upon written notice.

9. Termination and Suspension

9.1. Termination for Convenience

Either Party may terminate this Agreement at any time by giving the other Party thirty (30) days' prior written notice. During this notice period, the Merchant shall fulfill and settle all final Platform Invoices.

9.2. Termination for Cause

ShopNJoy may terminate this Agreement immediately upon written notice to the Merchant if:

- (a) Material Breach: The Merchant commits a material breach of any term of this Agreement (including a breach of the PDPA or non-payment of Platform Invoices) and fails to remedy such breach within seven (7) days of notice;
- (b) Insolvency: The Merchant undergoes an Insolvency Event or ceases to carry on its business;
- (c) Legal/Regulatory Requirement: ShopNJoy is required to do so by any regulatory authority (including MAS) or if a change in Applicable Law makes the provision of the Services illegal; or
- (d) Reputational Risk: The Merchant engages in any conduct that, in ShopNJoy's sole opinion, brings the Platform or its brand into disrepute.

9.3. Immediate Suspension Rights

ShopNJoy reserves the right to immediately suspend the Merchant's access to the Platform (including the ability to record transactions or use Gems) without prior notice if:

- (a) Fraud Suspected: ShopNJoy reasonably suspects the Merchant of engaging in fraudulent "tagging," manipulation, or money laundering;
- (b) KYB Failure: The Merchant fails a periodic KYB review or fails to provide updated corporate documentation upon request; or
- (c) Security Threat: There is a suspected security breach of the Merchant's account credentials.

9.4. Effects of Termination

Upon the termination or expiration of this Agreement:

(a) Cessation of Rights: All licenses granted to the Merchant under Clause 6 shall immediately cease, and the Merchant shall stop using all ShopNJoy branding and marketing collateral;

(b) Gem Status: Any "Pending" Gems in the Merchant's account that have not transitioned to "Current" status due to incomplete transaction cycles shall be forfeited;

(c) Data Retention: ShopNJoy shall retain Merchant and Shopper transaction data as required for its own regulatory compliance under Singapore law and regulations, while the Merchant shall return or destroy all Shopper Personal Data in its possession pursuant to Clause 7.6.

9.5. Clawback of Rewards

Termination of this Agreement shall not prejudice ShopNJoy's right to audit the Merchant's account and "claw back" any Gems or SGD settlements previously issued if such rewards are later discovered to have been generated through fraud or a breach of this Agreement.

9.6. Survival. The following Clauses shall survive the termination or expiration of this Agreement: Clause 1 (Definitions), Clause 4 (Financial Flow and Settlement), Clause 6 (Intellectual Property), Clause 7 (PDPA), Clause 8 (Liability and Indemnification), and Clause 10 (Dispute Resolution).

10. Dispute Resolution and Governing Law

10.1. Governing Law

This Agreement and any non-contractual obligations arising out of or in connection with it shall be governed by, and construed in accordance with, the laws of the Republic of Singapore.

10.2. Amicable Resolution

In the event of any dispute, controversy, or claim arising out of or relating to this Agreement, including the interpretation, breach, termination, or validity thereof (a "Dispute"), the Parties shall first attempt to resolve the matter through good-faith negotiations between their respective senior management or authorized representatives.

10.3. Arbitration

10.3.1. Reference to SIAC: If the Dispute cannot be resolved through negotiations within twenty-one (21) days of one Party notifying the other of the Dispute, such Dispute shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre ("SIAC") in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("SIAC Rules") for the time being in force, which rules are deemed to be incorporated by reference in this Clause.

10.3.2. Seat and Venue: The seat of the arbitration shall be Singapore.

10.3.3. Tribunal Composition: The Tribunal shall consist of one (1) arbitrator to be appointed by the President of the SIAC.

10.3.4. Language: The language of the arbitration shall be English.

10.3.5. Finality: The award rendered by the arbitrator shall be final and binding upon both Parties, and judgment upon the award may be entered in any court having jurisdiction thereof.

10.4. Interim Relief

Notwithstanding Clause 10.3, nothing in this Agreement shall prevent either Party from seeking interim or conservatory relief (such as an injunction) from the courts of Singapore or any other court of competent jurisdiction to protect its Confidential Information or Intellectual Property Rights pending the appointment of an arbitrator.

10.5. Continued Performance

Unless otherwise agreed in writing, the Parties shall continue to perform their respective obligations under this Agreement during the pendency of any dispute resolution proceedings, save for the specific matters in dispute.

10.6. Costs

The prevailing Party in any arbitration or legal proceeding shall be entitled to recover its reasonable attorneys' fees and costs, including the fees of the SIAC and the arbitrator, unless the Tribunal determines otherwise based on the conduct of the Parties.

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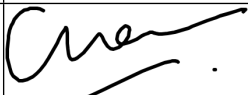
Declaration & Acknowledgement

By signing below, the Merchant acknowledges that this Master Services Agreement is made by and between ShopNJoy Pte. Ltd. (UEN No.: 202688777N), having its registered address at 133 Cecil Street, #14-01 Keck Seng Tower, Singapore 069535; AND the Merchant.

Merchant Details

ACRA Registered Company Name	Connecting Everyone Pte Ltd
Trading/Storefront Name (If Different)	Georges @ Wild West
Company UEN	202221279E
Bank Name	OCBC
Account Name	Connecting Everyone Pte Ltd
Account Number	60186236001
Routing Code (7 Digit Number: First 4 Digits Bank Code, Last 3 Digits Branch Code)	7339601

Authorised Signatory Details

Full Name	Kelvin Mark Chan Weng Yew
Title/Designation	Director
Email	kelvinmarkchan@hotmail.com
Contact Number	+6597481950
Date of Signature	08/07/2026
Authorised Signature	

For Internal Use Only (ShopNJoy Sales Representative)

Sales Agent Name	Anand Bala
Sales Agent Email	anand@shopnjoy.com
Date of Submission	09/07/2026

(END OF DOCUMENT)